

24SMCV03119 24SMCV03119

County: los-angeles

Division: Civil Law and Motion

Department: I

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The court is somewhat confused. Plaintiff filed these motions herself and she refers to herself as self-represented.

However, she is represented by counsel and the court does not see that counsel has substituted out. That needs to be determined before the court can rule.

Further, there are multiple motions in a single filing regarding the form interrogatories as to defendant Le, form interrogatories from defendant Phan, form interrogatories from Nature's Nails, special interrogatories as to all defendants (not broken out separately), and initial responses to requests for production as to all defendants (again, not broken out). There is also a motion to deem admitted as to unspecified defendants.

This improper filing makes it more difficult, if not impossible, for the court to sort this out.

For now, the motions are DENIED WITHOUT PREJUDICE. They may be re-filed, but they should be refiled properly. If plaintiff's counsel is no longer in the case, there should be a record so stating. And if plaintiff is represented by counsel, only counsel should file papers. The court is also not sure that the papers were even served.

The court notes that the discovery cut off is coming soon, so the parties might need to move with some alacrity.